

REQUEST FOR INFORMATION / SOURCES SOUGHT: 36C26326Q0532

The DEPARTMENT OF VETERANS AFFAIRS, Network Contracting Office 23, is conducting research and is issuing this Sources Sought to learn of the availability and capability of business sources qualified to provide the services listed below. This is **NOT** a solicitation.

REQUIREMENT: Triennial Inspection and Testing of Electrical Breakers and Electric Power Distribution System for the Department of Veterans Affairs, Iowa City VA Healthcare System Medical Center in Iowa City, Iowa.

NAICS CODE: 238210, Size standard is \$19M.

PSC: J061

HOW TO RESPOND:

All responses must be sent by email to: Joseph.Bennett@va.gov

All emails must include the following in the subject line: **36C26326Q0532 Electrical Testing**

All responses must be received no later than **04:30 PM CT, Monday, April 13, 2026**

INSTRUCTIONS TO RESPONDENTS:

1. Response must include:
 - a. Company Name.
 - b. SAM UEI.
 - c. Contact person.
 - d. Contact's phone number.
 - e. Contact's email address.
2. State your firm's Business Size under the above stated NAICS code. (All business sizes shall respond).
3. State if your firm is a socio-economic small business, ie., service-disabled-veteran-owned small business, veteran-owned small business, HUB zone 8(a), women-owned small business or a small-disadvantaged business.
4. See Statement of Work attached separately.

IMPORTANT INFORMATION ABOUT ANY POTENTIAL FUTURE SOLICITATION:

Information obtained as a result of this Sources Sought will help the VA determine if unrestricted procedures, small business set-aside procedures, or socio-economic small business set-aside procedures, will be used.

Socio-economic Set-Aside. In the event of socio-economic set-aside, the VA clause - VAAR 852.219-75 VA Notice of Limitations on Subcontracting—Certificate of Compliance for Services and Construction, will be included and strictly enforced. Attached separately.

Subcontracting. In the event of possibility of subcontracting, any future solicitation will likely require the offeror to provide a list of what work/tasks the prime contractor will perform, and a list of what work/tasks the subcontractor will perform.

Ostensible Subcontractor. If it appears that an unduly amount of work is being performed by a subcontractor who is not similarly situated as the prime contractor, a review will be requested of the Small Business Administration for determination of the subcontractor being an ostensible subcontractor or not. See information below.

Records Management Language for Contracts will apply and be included in any future solicitation. See Attachment.

Similarly Situated Entity. Definition of Similarly Situated Entity applies and is included below.

Combined Synopsis. If a future solicitation results from our market research, it will be posed under RFO FAR Part 12 Simplified Acquisition procedures and will very likely be a combined synopsis solicitation.

DISCLAIMER:

This RFI/Sources Sought is issued solely for information and planning purposes only and does not constitute a solicitation. All information received in response to this Sources Sought that is marked as proprietary will be handled accordingly. Responses to this notice are not offers and cannot be accepted by the Government to form a binding contract. Responders are solely responsible for all expenses associated with responding to this RFI. AT THIS TIME NO SOLICITATION EXISTS. (DO NOT REQUEST A COPY OF THE SOLICITATION).

*** END ***

See Attachments and information below.

Definition of Similar Situated Entity
Information on Ostensible Subcontractors
Record Management Language

Definition of Similarly Situated Entity:

Similarly situated entity means a subcontractor that has the same small business program status as the prime contractor. This means that: For a HUBZone contract, a subcontractor that is a certified HUBZone small business concern; for a small business set-aside, partial set-aside, or reserve, a subcontractor that is a small business concern; for a SDVOSB contract, a subcontractor that is a certified SDVOSB; for a VOSB contract, a subcontractor that is a certified VOSB; for an 8(a) contract, a subcontractor that is a certified 8(a) BD Program Participant; for a WOSB or EDWOSB contract, a subcontractor that is a certified WOSB or EDWOSB. In addition to sharing the same small business program status as the prime contractor, a similarly situated entity must also be small for the NAICS code that the prime contractor assigned to the subcontract the subcontractor will perform.

Reference: 13 CFR 125.1 (Apr. 2, 2026). Also see FAR Clause 52.219-14(b) Definition.

Ostensible Subcontractors

Information on Ostensible Subcontractors can be found in 13 CFR 121.103(h)(3)(i)(ii)(iii)(iv)(v) (Apr. 2, 2026).

Excerpt from 13 CFR 121.103(h)(3):

- (i) An offeror is ineligible as a small business concern, an 8(a) small business concern, a certified HUBZone small business concern, a WOSB/EDWOSB concern, or a VOSB/SDVOSB concern where SBA determines there to be an ostensible subcontractor. An ostensible subcontractor is a subcontractor that is not a similarly situated entity, as that term is defined in § 125.1 of this chapter, and performs primary and vital requirements of a contract, or of an order, or is a subcontractor upon which the prime contractor is unusually reliant.
- (ii) A prime contractor may use the experience and past performance of a subcontractor to enhance or strengthen its offer, including that of an incumbent contractor. It is only where that subcontractor will perform primary and vital requirements of a contract or order, or the prime contractor is unusually reliant on the subcontractor, that SBA will find the subcontractor to be an ostensible subcontractor.
- (iii) In the case of a contract or order set-aside or reserved for small business for services, specialty trade construction or supplies, SBA will find that a small business prime contractor is performing the primary and vital requirements of the contract or order, and is not unduly reliant on one or more subcontractors that are not small businesses, where the prime contractor can demonstrate that it, together with any subcontractors that qualify as small businesses, will meet the limitations on subcontracting provisions set forth in § 125.6 of this chapter.
- (iv) In a general construction contract, the primary and vital requirements of the contract are the management, supervision and oversight of the project, including coordinating the work of various subcontractors, not the actual construction work performed.
- (v) A joint venture offeror is ineligible as a small business concern, an 8(a) small business concern, a certified HUBZone small business concern, a WOSB/EDWOSB concern, or a VO/SDVO small business concern where SBA determines that the managing joint venture partner will not perform 40% of the work to be performed by the joint venture

RECORDS MANAGEMENT OBLIGATIONS FOR FEDERAL CONTRACTS

A. Applicability

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. Definitions

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

- Includes VA records.

- Does not include personal materials.

- Applies to records created, received, or maintained by Contractors pursuant to their VA contract.

- May include deliverables and documentation associated with deliverables.

C. Requirements

Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

Iowa City VA Medical Center and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of Iowa City VA Medical Center or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to Iowa City VA Medical Center. The agency must report promptly to NARA in accordance with 36 CFR 1230.

The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or

equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to Iowa City VA Medical Center control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and Iowa City VA Medical Center guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with Iowa City VA Medical Center policy.

The Contractor shall not create or maintain any records containing any non-public Iowa City VA Medical Center information that are not specifically tied to or authorized by the contract.

The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

The Iowa City VA Medical Center owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which Iowa City VA Medical Center shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take Iowa City VA Medical Center provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

D. Flowdown of Requirements to Subcontractors

The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.

Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.